

Ruiz via Code of Civil Procedure section 1295 because the Legislature may devise reasonable rules in civil litigation to permit the delegation to another party of the power to consent to arbitration instead of a jury trial. (*Pinnacle*, supra, 55 Cal.4th at 241, citing *Ruiz v. Podolsky* (2010) 50 Cal.4th 838, 853.)

In *McArthur*, the First District Court of Appeal confirmed the trial court's denial of a motion to compel arbitration to a non-signatory to a 2011 amendment to a family trust. (*McArthur v. McArthur* (2014) 224 Cal.App.4th 651, 653.) The Court stated under the Davis-Stirling Act, each owner of a condominium unit either has expressly consented or is deemed by law to have agreed to the terms in a recorded declaration. (*Id.* at 660.) The Court highlighted the importance that the Davis-Stirling Act statutorily confers standing upon an association to prosecute claims for construction damage in its own name without joining the individual condominium owners. (*Id.* at 661; citing *Pinnacle*, supra, 55 Cal.4th at p. 241.)

Here, the Master Declarations do not function the same as the CC&Rs in *Pinnacle* because there is no statutory authority to bind Plaintiffs to the arbitration agreement. Plaintiffs are not bound by the Davis Sterling Act like in *Pinnacle*, or by Code of Civil Procedure section 1295 in *Ruiz*. No such legislative mechanism exists to bind Plaintiffs to the arbitration agreement in Title 7 of the Civil Code.

As such, Defendant has not carried its initial burden to show the existence of an agreement to arbitrate between the parties.

Conclusion

For the reasons analyzed above, the **Motion to Compel Arbitration is Denied.**

9. 9:00 AM CASE NUMBER: C25-02272

CASE NAME: GEORGE PAVANA VS. DAS POLLAYIL

FOR OSC RE SALE OF REAL PROPERTY

FILED BY:

TENTATIVE RULING:

Before the Court is an application for an order directing the Sheriff to sell real property pursuant to certain debt collection statutes in the Code of Civil Procedure. The application was filed by plaintiffs and judgment creditors, George Pavana and Philip Philip. The defendant has not appeared, but third-party claimant, Nimmy Parecadan, has opposed the application.

A brief procedural history is set forth in the Stipulation and Order filed on May 15, 2026. The recitals therein state, in relevant part:

WHEREAS, Judgment Creditors filed their Application for an Order Directing Sheriff to Sell Real Property in connection with [Parecadan]'s property located at 1849 Canyon Dr. Pinole, California 94564 ("Subject Property") on August 6, 2025;

WHEREAS, Judgment Creditors filed an ex parte application for an Order to Show Cause ("OSC") hearing related to the application for sale of 1/3 of the Subject Property on August 26, 2025;

WHEREAS, the Hon. Benjamin Reyes signed an order granting an OSC hearing related to Judgment Creditors' Application for Sheriff's Sale of the Subject Property. The OSC hearing date was initially set for October 15, 2025 at 9:00 a.m. in Dept. 16 of the above-entitled Court;

WHEREAS, on October 15, 2026 [sic], the OSC Re Sale of Real Property was heard and Hon. Benjamin Reyes continued the OSC hearing to January 28, 2026 at 9:00 a.m. to consider the [Parecadan]'s late opposition;

WHEREAS, [Parecadan] submitted to the Contra Costa County Sheriff and served on Judgement Creditors a "Third Party Claim" dated September 12, 2025, and [Parecadan] thereafter filed on November 7, 2025 and served on Judgment Creditors a "Petition for Third Party Claim" in Alameda County Superior Court Action No. C-741785 (collectively, "Third-Party Claim");

WHEREAS, on January 20, 2026, [Parecadan] filed an ex parte application to continue the OSC hearing at the time set for January 28, 2026 due to being unrepresented by counsel at the time, and the pending Third-Party Claim in Alameda County Superior Court;

WHEREAS, the Court granted [Parecadan]'s ex parte application on January 20, 2026, continuing the OSC hearing to April 15, 2026. The Court subsequently continued the hearing to May 20, 2026 on its own motion;

WHEREAS, following a continuance by the Court to accommodate its calendar from the previously scheduled hearing date of May 1, 2026, the hearing on [Parecadan]'s Third-Party Claim was heard on May 7, 2026 at 10:00a.m. in Dept. 520, the Hon. Jamilah Jefferson presiding, of the Alameda County Superior Court (Case No. C-741785). The Hon. Jamilah Jefferson further continued the hearing on [Parecadan]'s Third-Party Claim to July 14, 2026 at 10:00 a.m. to allow for further oral argument and testimony as reflected by Minute Order entered May 7, 2026. (A true and correct copy of the Minute Order is attached hereto as Exhibit A.)

WHEREAS, in an effort to preserve judicial economy and reduce the risk of inconsistent rulings, the Parties further stipulate to continue the Judgment Creditors' Hearing on Order to Show Cause Regarding Sale of the Subject Property to a date after the July 14, 2026 hearing on Petitioner's Third-Party Claim in Alameda County Superior Court, and no earlier than August 1, 2026;

In response to the above stipulated facts, this Court set the hearing on this application for August 5, 2026.

Parecadan requests judicial notice of the judgment entered after the Alameda hearing on her third-party claim. The request is **granted**. The Honorable Jamilah A. Jefferson presided over a hearing that commenced on May 7, 2026 and continued on July 14, 2026. Following submission of the matter, judgment was entered in favor of Parecadan. Specifically, the judgment stated:

Nimmy Parecadan has the sole right to ownership and possession of the Property free and clear of any claim of right to ownership or possession of Das Pollayil, and judgment creditors have no right to sell the property to satisfy any judgment lien against Das Pollayil arising from the judgment herein.

Pursuant to Code of Civil Procedure, § 720.390:

At the conclusion of the hearing, the court shall give judgment determining the validity of the third-party claim and may order the disposition of the property or its proceeds in accordance with the respective interests of the parties. Subject to Section 720.420, the judgment is conclusive between the parties to the proceeding.

Because the above-mentioned judgment from the Superior Court of California, Alameda County, is binding on the plaintiffs here, the application must be **denied**.

10. 9:00 AM CASE NUMBER: C25-03287
CASE NAME: JOSEPH WAINAUSKAS VS. DAVE & BUSTER'S MANAGEMENT, LLC

FILED BY: DAVE & BUSTER'S MANAGEMENT, LLC

TENTATIVE RULING:

Introduction

Before the Court is Defendant Dave and Buster Management LLC's (DnB or Defendant) Motion To Compel Plaintiff Joseph Wainauskas's individual claims to binding arbitration, and stay the representative PAGA claims in this civil action. The Motion relates to Plaintiff's Complaint for one solely representative PAGA cause of action, purposefully excluding Plaintiff's individual PAGA claim.

For the reasons stated below, **Plaintiff shall file an amended complaint by August 20, 2026. Parties to appear to discuss a new briefing schedule based on the amended complaint.**

Procedural Background

This case is about a class action employment lawsuit based on wage violations from May 15, 2018, until the date of class certification. (Complaint at ¶ 20 and generally.) Plaintiff filed her complaint on November 8, 2022. Plaintiff filed a Notice of Hearing on August 23, 2023, which provided if non motion to compel arbitration is filed by the November 29, 2023, CMC, the Court will consider the Defendant to have waived their rights to arbitration. Defendant EVLO filed their Motion to Compel Arbitration on November 28, 2023.

Factual and Procedural Background

Plaintiff worked for Defendant as a non-exempt Service Support employee at Defendant's Long Beach, California location from November 12, 2023, to June 3, 2025. (Complaint ¶ 1.)

On November 7, 2025, Plaintiff filed the operative pleading in this Court, styled the "Representative Action Complaint." The complaint alleges a single cause of action for civil penalties under the Private